



CHAPTER lii.

An Act to confer additional powers upon the Midland Railway Company for the construction of works and the acquisition of lands to authorise the County Donegal Railways Joint Committee to subscribe further moneys to the capital of the Strabane and Letterkenny Railway Company and for other purposes. [26th July 1910.] A.D. 1910.

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to make the new road and to exercise the other powers in this Act mentioned and also to acquire retain hold and use lands for the purposes of this Act and for extending their station siding warehouse coal-wharf dépôt mineral goods and other accommodation and for other purposes connected with their undertaking:

And whereas plans and sections showing the lines and levels of the new road by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the counties of Leicester and Warwick within which the said road will be made or the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively:

And whereas it is expedient that the times now limited by the Midland Railway (West Riding Lines) Act 1898 as extended by the Midland Railway Acts 1901 1904 and 1907 for the compulsory purchase of lands for the purposes of and for the

A.D. 1910. — construction of so much of the railways authorised by the said Act of 1898 as has not been constructed should be extended as provided by this Act:

And whereas it is expedient that the time now limited by the Midland Railway Act 1899 as extended by the Midland Railway Acts 1902 and 1905 for the completion and opening of so much of the Huddersfield Railway authorised by the said Act of 1899 as was not by the Midland Railway Act 1906 authorised to be abandoned should be extended as provided by this Act:

And whereas it is expedient that the time limited by the Midland Railway Act 1907 for the compulsory purchase of lands for and for the construction of the railway known as the Staveley North Curve by that Act authorised should be extended as provided by this Act:

And whereas it is expedient that the time limited by the Midland Railway Act 1907 for the compulsory purchase of lands for the diversion of Bradford Beck by that Act authorised should be extended as provided by this Act:

And whereas it is expedient that the Company should be empowered to abandon the railways authorised by the Midland Railway Act 1899 and therein described as the Low Moor junctions and the Halifax connecting lines:

And whereas it is expedient that further powers should be conferred upon the Company and upon any joint committee incorporated by Act of Parliament of the Company and any other company or companies or any joint committee so incorporated on which the Company is represented (in this Act called "the joint committees") with respect to the lease or other disposal of lands acquired by the Company or any such joint committee which are not or eventually may not be required for the purposes for which they may have been so acquired:

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act:

And whereas by the Great Northern (Ireland) and Midland Railways Act 1906 (in this Act called "the Act of 1906") the County Donegal Railways Joint Committee (in this Act called "the Donegal Committee") by that Act incorporated were authorised to subscribe moneys towards the capital of the Strabane and

Letterkenny Railway Company (in this Act called "the Strabane Company") and it is expedient that the Strabane Company should be empowered to raise further moneys by borrowing and by the creation and issue of debenture stock and that the Donegal Committee should be empowered to lend moneys to and to take and hold debenture stock of the Strabane Company as provided by this Act: A.D. 1910.

And whereas it is expedient that the agreement between the Company and the Hull and Barnsley Railway Company set forth in the Second Schedule to this Act should be confirmed:

And whereas it is expedient that the Company should be empowered to apply their funds for the purposes of the new road by this Act authorised and for other purposes of this Act:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited for all purposes as the Midland Short title.
Railway Act 1910.

2. The following Acts and parts of Act are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):— Incorporation of
general Acts.

The Lands Clauses Acts;

Part II. (relating to extension of time) of the Railways
Clauses Act 1863;

The provisions of the Companies Clauses Consolidation Act
1845 with respect to borrowing of money on mortgage
or bond;

And Part III. (relating to debenture stock) of the Companies
Clauses Act 1863 as amended by subsequent Acts.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings. Interpretation.

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Power to
Company to
make new
road at Coal-
ville.

4. Subject to the provisions of this Act the Company may in the parish and urban district of Coalville in the county of Leicester and in the lines shown upon the deposited plans and in accordance with the levels shown on the deposited sections make the new road hereinafter described with all proper works and conveniences connected therewith and may exercise the powers hereinafter mentioned and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes (that is to say):—

A new road commencing at a point on the public road known as Mantle Lane leading from Coalville to Coleorton four chains or thereabouts measured in a northerly direction from the centre of the crossing on the level of the said lane by the Company's railway from Leicester to Burton and terminating at a point in the said lane eight chains or thereabouts measured in a southerly direction from the centre of the said crossing;

and the Company may stop up and discontinue the said crossing and so much of the said lane as lies between the said points of commencement and termination of the said new road as is not required for the purpose of the said new road and also the existing footway and subway for foot passengers which passes under the said railway at or near the said level crossing.

Power to
Company to
acquire lands
for general
purposes.

5. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate for the purposes of extending their stations sidings warehouses coal wharves depôts mineral goods and other works and conveniences for the accommodation of their traffic and for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company and for other purposes connected with their undertaking all or any of the lands houses and buildings following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say):—

In the county of Leicester—

Lands in the parish of Swannington in the rural district of Ashby-de-la-Zouch on the north-east side of and

adjoining the Company's railway from Leicester to Burton and situate between points twenty-eight chains or thereabouts and forty-three chains or thereabouts measured in a north-westerly direction from the level crossing of the said railway by Mantle Lane: A.D. 1910.

In the county of Warwick—

Lands in the parish of Wilnecote and Castle Liberty in the rural district of Tamworth on the west side of and adjoining the Company's railway from Birmingham to Derby at or near the southern end of the Wilnecote and Fazeley Station thereon.

6. Subject to the provisions of this Act the new road by this Act authorised shall when made and completed be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other roads of a similar nature within the parish in which such road will be situate are from time to time liable to be repaired or maintained. Provisions as to repair of road.

If any question shall arise between the company and any of such parties as to the due completion of such road such question shall from time to time be determined by two justices on the application of either of the parties in difference and after not less than seven days' notice to both parties of the sitting of such justices for the purpose and the certificate of such justices of the due completion of such road shall be conclusive evidence of the fact so certified.

7. Where this Act authorises the making of a new road and the stopping up of an existing road or portion thereof such stopping up shall not take place until such new road is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified that the new road has been completed to their satisfaction and is open for public use. As to stopping up of roads.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or as from the date of the said

A.D. 1910.

certificate as the case may be all rights of way over the level crossing at Mantle Lane and over the existing footway and subway for foot passengers which passes under the Company's railway from Leicester to Burton near the said level crossing and all rights of way over or along the existing road or portions by the section of this Act whereof the marginal note is "Power to Company to make new road" authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Limits of
deviation of
new road.

8. In constructing the new road by this Act authorised the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards or two feet downwards.

As to private
rights of way
over lands
taken com-
pulsorily.

9. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for
compulsory
purchase of
lands.

10. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

11. And whereas in the construction of the work by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that

such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:— A.D. 1910.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner

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may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for

this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845. A.D. 1910.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to owners to grant easements &c.

13. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the clerk to the district council for the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk to the district council respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands or rights in and over the same as the case may be and execute the works in accordance with such certificate. Correction of errors &c. in deposited plans and books of reference.

14. The time limited by the Midland Railway (West Riding Lines) Act 1898 as extended by the Midland Railway Acts 1901 1904 and 1907 for the compulsory purchase of lands for Extension of time for purchase of lands for

A.D. 1910. the purposes of the Railway No. 6 by the first-mentioned Act
West Riding authorised and of so much of Railway No. 4 by that Act
lines. authorised as lies between the point marked one mile on the
deposited plans relating to the said railway referred to in that
Act and the termination of the said railway is hereby further
extended for a period of one year from the twenty-fifth day of
July one thousand nine hundred and ten.

Extension
of time for
construction
of West
Riding lines.

15. The period limited by the Midland Railway (West Riding Lines) Act 1898 for the completion of so much of the railways by that Act authorised as has not been constructed as extended by the Midland Railway Acts 1901 1904 and 1907 is hereby further extended for a period of two years from the twenty-fifth day of July one thousand nine hundred and twelve and sections 30 and 31 of the said Act of 1898 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

If the said railways be not completed within the said period of two years then on the expiration of that period the powers of the said Act of 1898 and this Act respectively granted to the Company for making and completing the same respectively or otherwise relating thereto shall cease except as to so much thereof respectively as shall then be completed.

For protec-
tion of cor-
poration of
Dewsbury.

16. The provisions of section 10 of the Midland Railway (West Riding Lines) Act 1898 shall so far as the same are applicable apply and have effect for the protection of the mayor aldermen and burgesses of the borough of Dewsbury as extended by the Dewsbury (Extension) Order 1909 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1909 and in addition to the provisions contained in that section the following provisions for the protection and benefit of the said mayor aldermen and burgesses (in this section called "the corporation") shall unless otherwise agreed in writing between the corporation and the Company apply and have effect (that is to say):—

(1) Subsection 4 of section 10 of the said Act of 1898 shall be read and have effect as if the words "sixteen feet six inches" were therein substituted for the words "sixteen feet":

(2) The Company shall not interfere with the existing tramway in Huddersfield Road except so far as may be necessary for the purpose of carrying out the

alteration of the gradient of that road authorised by the said Act of 1898 and they shall carry out the works authorised by that Act so far as they affect the said tramway (hereinafter called "the said works") to the reasonable satisfaction and under the superintendence (if given) of the corporation and in such a manner as not to obstruct or interfere with the free and uninterrupted and safe user of the said tramway or the temporary tramway substituted therefor as hereinafter provided: A.D. 1910.

- (3) The Company shall carry out the said works on one side only of the said Huddersfield Road at one time and if it be necessary for the purpose of constructing the said works to temporarily stop up the said tramway they shall construct a temporary tramway in substitution therefor along the side of the road on or over which they are not for the time being constructing the said works or the corporation may if they think fit at the cost of the Company in all things and in accordance with plans to be first reasonably approved by the principal engineer of the Company themselves construct such temporary tramway and at the like cost and also in accordance with plans approved by the principal engineer of the Company as aforesaid execute any work reasonably necessary in connection with the temporary alteration of the said tramway which may be rendered necessary by the said works:
- (4) After the completion of the said works the Company shall reinstate the said tramway to the reasonable satisfaction of the corporation or the corporation may if they think fit themselves reinstate the said tramway at the reasonable cost in all things of the Company:
- (5) If any obstruction or interference with the safe user of the said tramway or the substituted tramway shall be caused by reason of or in connection with the said works by the action or default of the Company the Company shall pay to the corporation and their lessees of the said tramway full compensation for all such obstruction or interference:

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(6) Any difference which may arise between the corporation and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall unless otherwise agreed upon be settled by an engineer or other fit person to be appointed in default of agreement on the application of either party by the President of the Institution of Civil Engineers in accordance with the provisions of the Arbitration Act 1889.

Extension
of time for
construction
of Hudders-
field Rail-
way.

17. The period limited by the Midland Railway Act 1899 as extended by the Midland Railway Act 1902 and the Midland Railway Act 1905 for the completion and opening of so much of the Huddersfield Railway authorised by the said Act of 1899 as is not by the Midland Railway Act 1906 authorised to be abandoned is hereby further extended for a period of two years from the thirteenth day of July one thousand nine hundred and ten and sections 44 and 45 of the said Act of 1899 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

Extension
of time for
purchase of
lands for
Staveley
North
Curve.

18. The time limited by the Midland Railway Act 1907 for the compulsory purchase of lands for the purposes of the Staveley North Curve by that Act authorised is hereby extended for a period of three years from the ninth day of August one thousand nine hundred and ten.

Extension
of time for
construction
of Staveley
North
Curve.

19. The period limited by the Midland Railway Act 1907 for the completion of the Staveley North Curve by that Act authorised is hereby extended for a period of three years from the ninth day of August one thousand nine hundred and twelve and sections 9 and 10 of the said Act of 1907 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

If the said railway be not completed within the said period of three years then on the expiration of that period the powers of the said Act of 1907 and this Act respectively granted to the Company for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

Extension
of time for
purchase of
lands for

20. The time limited by the Midland Railway Act 1907 for the compulsory purchase of lands for the purposes of the diversion of Bradford Beck by that Act authorised is hereby

A.D. 1910.

extended for a period of two years from the ninth day of August one thousand nine hundred and ten.

diversion of
Bradford
Beck.

21. The Company may and shall abandon the construction of the Low Moor junctions and the Halifax connecting lines authorised by the Midland Railway Act 1899.

Company
may abandon
authorised
railways.

22. The abandonment by the Company under the authority of this Act of any portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the said Act of 1899.

Compensa-
tion for
damage to
land by entry
&c. for pur-
poses of
railways
abandoned.

23. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Compensa-
tion to be
made in
respect of
portions of
railways
abandoned.

24. And whereas lands have from time to time been purchased or acquired by the Company and by joint committees incorporated by Act of Parliament on which the Company may be represented adjoining or near to railways or stations belonging to the Company or belonging to or managed by such a joint committee but such lands are not immediately required for the purposes of the undertaking of the Company or of such joint

Power to
lease lands
&c.

A.D. 1910. committee as the case may be and it is expedient that further powers should be conferred upon the Company and such joint committees respectively with respect to such lands. Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company or any such joint committee with which that Act is incorporated the Company or any such joint committee shall not be required to sell or dispose of any such lands but may retain hold or use or may lease or otherwise dispose of the same.

Confirming
agreement
with Hull
and Barnsley
Railway
Company.

25. The agreement dated the thirty-first day of March one thousand nine hundred and ten and made between the Company of the one part and the Hull and Barnsley Railway Company of the other part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon and shall be carried out by the parties thereto.

Power to
borrow on
mortgage.

26. The Strabane Company may in addition to any moneys which they are by any of the Acts relating to that company authorised to borrow from time to time borrow on mortgage of their undertaking or otherwise any moneys not exceeding in the whole fifty-five thousand pounds.

Appoint-
ment of
receiver of
Strabane
Company.

27. Section 23 of the Strabane Raphoe and Convoy Railway (Extension to Letterkenny) Act 1904 with respect to the appointment of a receiver by mortgagees of the Strabane Company is hereby repealed but without prejudice to any appointment made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under that section. The mortgagees of the undertaking of the Strabane Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture
stock.

28. The Strabane Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and section 23 of the Strabane Raphoe and Convoy Railway (Extension to Letterkenny) Act 1904. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

29. The Donegal Committee may advance and lend money to the Strabane Company for the purposes of their undertaking upon such terms and conditions as may be agreed upon or the Donegal Committee may by lending money on mortgage or subscribing for or taking debenture stock contribute towards the undertaking of the Strabane Company such sums as they may from time to time think fit.

A.D. 1910.
Donegal
Committee
may lend
money to
Strabane
Company.

The Donegal Committee shall not transfer or sell any mortgages or debenture stock of the Strabane Company held or acquired by them under the powers of this Act.

The purposes of the Donegal Committee under this section shall be deemed to be purposes of the Donegal Committee under the Act of 1906 within the meaning of section 33 of that Act and the provisions of the said section 33 shall extend and apply accordingly.

30. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Company
may apply
corporate
funds.

31. The Great Northern Railway Company (Ireland) may apply to the purposes of this Act in which they are interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Power to
Great
Northern
Railway
Company
(Ireland) to
apply funds.

32. No interest or dividend shall be paid out of any share or loan capital which the Strabane Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Strabane Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Interest not
to be paid on
calls paid up.

33. The Strabane Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in

Deposits for
future Bills
not to be
paid out of
capital.

A.D. 1910. — respect of any application to Parliament for the purpose of obtaining an Act authorising the Strabane Company to construct any other railway or to execute any other work or undertaking.

Provision
as to general
Railway
Acts.

34. Nothing in this Act contained shall exempt any of the companies or committee upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act.

Costs of Act.

35. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1910.

FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED
TO BE TAKEN BY THE COMPANY.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
NEW ROAD AT COALVILLE.		
4	Urban district of Coalville -	Clay pit and works ditch and road embankment.
6	Ditto - - - -	Land reservoir ditch and road embank- ment.
7	Ditto - - - -	Land roadway office and stores.

SECOND SCHEDULE.

AGREEMENT made the thirty-first day of March 1910 between
the HULL AND BARNSELY RAILWAY COMPANY (hereinafter
called "the Hull and Barnsley Company") of the one part
and the MIDLAND RAILWAY COMPANY (hereinafter called
"the Midland Company") of the other part.

Stamp.

Ten
shillings.

WHEREAS by the Hull Barnsley and West Riding Junction Railway and
Dock (South Yorkshire Extension Lines) Act 1902 (hereinafter called
"the Act of 1902") the Hull and Barnsley Company were authorised
to construct certain railways in the west riding of the county of York:

And whereas the period limited for the completion of the said
railways was subsequently extended:

And whereas by the Hull and Barnsley Railway Act 1909 (herein-
after called "the Act of 1909") the Hull and Barnsley Company were
authorised to abandon certain of the said railways and to construct
certain other railways in the said west riding:

And whereas by the Act of 1909 provision was further made for
the transfer to the Great Central Railway Company in certain events

A.D. 1910. (which have since occurred) of a third share in the railways authorised by that Act and in a part of Railway No. 2 authorised by the Act of 1902 (which railways together form a line running from Gowdall to a junction with the undertaking of the Great Central Hull and Barnsley and Midland Committee near Braithwell so as to serve a portion of the South Yorkshire coalfield and are in the Act of 1909 and hereinafter referred to as "the transferred line"):

And whereas provision was also made by the Act of 1909 for the incorporation of a joint committee (hereinafter called "the joint committee") representing the Hull and Barnsley Company and the Great Central Railway Company for the purpose of exercising the powers with respect to the transferred line which under that Act might be transferred to and vested in them:

And whereas by section 50 of the Act of 1909 the Midland Company were granted running powers and other facilities over and with regard to the transferred line:

And whereas the Midland Company opposed the promotion of the Bill for the Act of 1909 by the Hull and Barnsley Company on divers grounds but withdrew their opposition and supported the said Bill upon the terms and conditions hereinafter contained:

Now these presents witness that it is hereby agreed by and between the Companies parties hereto as follows (that is to say):—

1. The Hull and Barnsley Company will not (without the previous consent in writing of the Midland Company) consent to the postponement of the construction of the transferred line by the joint committee and in the event of the representatives on the joint committee of the Great Central Railway Company failing to perform all such acts as may be necessary on their part to enable the joint committee to carry out the construction of the transferred line as expeditiously as possible or in the event of the Great Central Railway Company failing to provide the funds as required by the joint committee in accordance with the provisions of the Act of 1909 the Hull and Barnsley Company will proceed with the construction of the line under the powers contained in subsection 6 of section 58 of that Act.

2. The Midland Company will if required to do so by the Hull and Barnsley Company assist that company by providing the part of the capital for the construction and equipment of the transferred line which will fall to be provided by them to an amount not exceeding two hundred and fifty thousand pounds upon the terms and conditions following:—

(1) As and whenever money is required for the construction and equipment of the transferred line the Midland Company shall if and when required by the Hull and Barnsley

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Company so to do advance to the latter company the amount of that company's share of the money so required and the amounts so advanced with interest thereon from the dates of payment until the opening of the transferred line calculated at the rate of $3\frac{7}{8}$ per centum per annum with half-yearly rests shall be carried to an account to be kept between the two Companies to be called "the joint transferred line advance account" and is hereinafter called "the advanced capital":

- (2) The advanced capital shall not be a debt recoverable from the Hull and Barnsley Company but it shall be lawful for that company at any time to give to the Midland Company notice in writing under the hand of their secretary of their intention to repay the advanced capital and in the event of such notice being given the Hull and Barnsley Company may and shall repay the advanced capital at the expiration of twelve months from the date of such notice and if the Hull and Barnsley Company fail to repay the amount so repayable at the expiration of the said period of twelve months they shall while the same or any part thereof is unpaid pay interest at the rate of 4 per centum per annum upon the said amount or so much thereof as shall remain unpaid:
- (3) After the opening of the transferred line and until the advanced capital shall become and be repayable under the last preceding sub-clause the Hull and Barnsley Company shall pay to the Midland Company interest upon the advanced capital half yearly at the rate of $3\frac{7}{8}$ per centum per annum:

Provided that any claim of the Midland Company in respect of interest upon the advanced capital shall not rank before the claims of the holders of any present or future debenture stock of the Hull and Barnsley Company.

3. Any dispute or difference arising directly or indirectly under this agreement between the Companies parties hereto touching any question matter or thing referred to therein shall be determined in case of difference by an arbitrator to be appointed failing agreement between the parties by the Board of Trade Any arbitrator so appointed shall be deemed to be a single arbitrator appointed under the Arbitration Act 1889.

4. This agreement shall not come into operation until it shall have been confirmed by Act of Parliament and in the event of either House of Parliament making any material alteration therein it shall be in the option of either Company to withdraw from the same by notice in writing to the other Company to that effect and thereupon this agreement shall become void.

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5. In the event of the Midland Company failing to advance capital to the Hull and Barnsley Company under the terms of this agreement the obligations of the Hull and Barnsley Company under clause 1 of this agreement shall cease and the running powers and other facilities granted by section 50 of the Act of 1909 shall not be exercisable by the Midland Company without the consent of the Hull and Barnsley Company.

6. When and so soon as this agreement shall come into operation the heads of agreement made between the Companies parties hereto and dated the twenty-first day of May one thousand nine hundred and nine shall cease to have any operation.

In witness whereof the Hull and Barnsley Railway Company and the Midland Railway Company have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Hull and Barnsley Railway
Company was hereunto affixed in the presence of

L.S.

W. S. WRIGHT Chairman.

The common seal of the Midland Railway Company was
hereunto affixed in the presence of

L.S.

JAMES W. OXLEY Director of the Company
Spensfield Weetwood near Leeds.

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